

23VECV00946 23VECV00946

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-06-25

Motion: PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT AGREEMENT AND FOR ENTRY OF JUDGMENT [C.C.P. SECTION 66.46]

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Case Number: 23VECV00946 Hearing Date: June 25, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF

CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST

DISTRICT

CARLTON PLAZA OFFICE INVESTORS, LP, a California limited

partnership,

Plaintiff,

vs.

ELLIOTT H. STONE, an individual; SLF MANAGEMENT, LLC, an

Oregon limited liability company; and DOES 1-20, inclusive,

Defendants.

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CASE NO: 23VECV00946

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION

TO ENFORCE SETTLEMENT AGREEMENT AND FOR ENTRY OF JUDGMENT [C.C.P. SECTION

66.46]

Dept. U

8:30 a.m.

June 25, 2026

I.

BACKGROUND

This case is an action to

recover for the alleged breach of an office lease by

Plaintiff Carlton Plaza Office Investors, LP ("Carlton") against

Defendants Elliott Stone ("Stone") and SLF Management, LLC ("SLF"). Stone

is a licensed California attorney.

On March 2, 2023, Carlton

Plaza filed its original complaint against Defendants,

alleging: (1) breach of lease against SLF; (2) breach of guaranty against

Stone; and (3) declaratory relief against both Defendants. The

complaint alleges that SLF stopped paying rent at the end of 2019.

On February 5, 2024, Carlton

Plaza filed its first amended complaint (the "FAC") against Defendants,

seeking/alleging: (1) breach of lease against SLF; (2) breach of

guaranty against Stone; (3) declaratory relief re: COVID moratorium against

both Defendants; and (4) declaratory relief re: reformation of

guaranty against both Defendants.

On May 22, 2024, the Court

overruled Defendants' demurrer to the FAC.

On June 3, 2024, Defendants filed

their answer to the complaint, asserting their general denial and several affirmative defenses.

On June 10, 2024,

Cross-Complainants Stone and SLF filed their cross-complaint against

Cross-Defendants Carlton Plaza, Brad Lofgren a/k/a Bradley

Lofgren ("Lofgren"), and Stephen Zotovich ("Zotovich"),

seeking/alleging: (1) civil penalties for violation of the County's COVID-19

Tenant Protection Ordinance against all Cross-Defendants; and (2) unfair

business practices in violation of Business & Professions Code section

17200, et seq. against Carlton Plaza.

On March 25, 2025, the Court

entered the parties' request for dismissal with prejudice as to the entire

action of all parties and all causes of action.

On April 30, 2026, Plaintiff filed a motion to enforce

settlement agreement and for entry of judgment per Code of Civil Procedure

section 664.6.

On June 11, 2026, Stone and SLF filed their opposition to

the motion.

On June 17, 2026, Plaintiff filed its reply to the

opposition.

II.

LEGAL

STANDARD

"If parties to

pending litigation stipulate, in a writing signed by the parties outside the

presence of the court or orally before the court, for settlement of the case,

or part thereof, the court, upon motion, may enter judgment pursuant to the

terms of the settlement. If requested by the parties, the court

may retain jurisdiction over the parties to enforce the

settlement until performance in full of the terms of the settlement."

Code Civ. Proc., § 664.6, subd. (a).

III.

DISCUSSION

Plaintiff moves to

enforce the parties' settlement agreement against Stone and SLF under Code of

Civil Procedure section 664.6. The

motion will be summarily denied.

On March 13, 2025,

the parties reached a settlement agreement (the "Settlement"). The Settlement provided that Stone and SLF

would initially pay Plaintiff \$80,000.00 plus \$6,000.00 monthly installments

each month thereafter until a final \$8,000.00 payment on or before March 1,

2028. (Crist decl., Ex. A, ¶ 1.) The Settlement also provides for the Court's

continuing jurisdiction under Code of Civil Procedure section 664.6. (Crist decl., Ex. A, ¶ 3.)

However, Plaintiff

failed to present sufficient evidence that the Court retained jurisdiction

under Code of Civil Procedure section 664.6 before the request for dismissal

was filed on March 25, 2025. A trial

court lacks jurisdiction to hear a motion to enforce settlement where the

parties voluntarily dismissed the case without having expressly requested

before the dismissal that the court retain jurisdiction to enforce the

settlement agreement. See *Mesa RHF*

Partners, L.P. v. City of Los Angeles (2019) 33 Cal.App.5th 913, 918. "A request for the trial court to retain

jurisdiction under section 664.6 'must conform to the same three requirements

which the Legislature and the courts have deemed necessary for section 664.6

enforcement of the settlement itself: the request must be made (1) during the

pendency of the case, not after the case has been dismissed in its entirety,

(2) by the parties themselves, and (3) either in a writing signed by the

parties or orally before the court.' [Citation.]" *Id.*, at p. 917.

"While a written

or oral request for retention of jurisdiction may, but need not be, a part of

the settlement agreement itself, that request must be express, not implied from other language, and it must be clear and unambiguous. A court should not have to resolve doubts or disputes as to whether an intention to retain jurisdiction is found in the provisions of a writing or an oral statement. These requirements for section 664.6 retention of jurisdiction preclude an assertion... that a court should examine other actions of the parties to determine whether the parties constructively 'requested' that there be retention of jurisdiction to enforce the terms of the settlement."

Wackeen v. Malis (2002) 97 Cal.App.4th 429, 440 (Wackeen),
italics added.

The Court's March

14, 2025 minute order, upon which Plaintiff relies, does not clearly or unambiguously state that the Court retained jurisdiction under Code of Civil Procedure section 664.6. Rather, it reads, "Order to Show Cause Re: Dismissal (Settlement) The Court gives counsel notice that the Court will dismiss this case on the next court date pursuant to Code of Civil Procedure § 664.6(e)(f) is scheduled for 05/09/2025 at 08:30 AM in Department U at Van Nuys Courthouse East." (Viner decl., Ex. D.,
italics added.) The use of the word

"will" shows that the Court had not yet retained jurisdiction under section

664.6. At most, this language is ambiguous.

Moreover, Plaintiff's

former counsel's declaration does not clearly or unambiguously show that the

Court retained jurisdiction under Code of Civil Procedure section 664.6 on

March 14, 2026 either, as there is no corroboration of these statements in the

March 14, 2026 minute order. (See Dennis

Decl., ¶¶ 5-6; Viner decl., Ex. D.) Also,

as the Court of Appeal stated, "[t]hese requirements for section 664.6

retention of jurisdiction preclude an assertion... that a court should examine

other actions of the parties to determine whether the parties constructively

'requested' that there be retention of jurisdiction to enforce the terms of the

settlement." (Wackeen, supra,

97 Cal.App.4th at p. 440.)

Furthermore, the

Settlement agreement's provision for continuing jurisdiction under Code of

Civil Procedure section 664.6 by itself does not vest the Court with continuing

jurisdiction under section 664.6. (See

Crist decl., Ex. A; Sayta v. Chu (2017) 17 Cal.App.5th 960, 967

[settlement agreement providing for trial court's continuing jurisdiction under

Code of Civil Procedure section 664.6 is a nullity if dismissal was entered without

having asked the court to retain jurisdiction].)

The Court declines

to address the parties' remaining arguments.

Based on the foregoing, the Court lacks jurisdiction to hear this motion

and therefore summarily DENIES it.

IV.

CONCLUSION

The Court summarily DENIES

Plaintiff's motion to enforce settlement agreement and for entry of judgment.

Defendants Elliott Stone and SLF Management,

LLC are ORDERED to give notice.

DATED: June 25, 2026

Yolanda Orozco

Judge of the

Superior Court